

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Ridge	Team: Squad #05	CCRB Case #: 201801609	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 02/26/2018 4:23 PM	Location of Incident: in front of § 87(2)(b); en route to § 87(2)(b)	18 Mo. SOL 8/26/2019	Precinct: 90
Date/Time CV Reported Tue, 02/27/2018 1:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/27/2018 1:33 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jaray Green	10823	940212	090 PCT
2. POM Christophe Whyms	27507	946392	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Henry Yanez	17147	935999	090 PCT
2. POM Joshua Echevarria	18751	958541	090 PCT
3. POM Carlos Pava	28246	921662	090 PCT
4. POM Antonino Dangelo	05434	963477	090 PCT
5. POM Kevin Llerena	23687	953003	090 PCT
6. POM Erick Villanueva	13431	942671	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Whyms	Abuse: Police Officer Christopher Whyms threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Christophe Whyms	Abuse: Police Officer Christopher Whyms threatened to remove § 87(2)(b) to the hospital.	B . Unsubstantiated
C . POM Jaray Green	Abuse: Police Officer Jaray Green forcibly removed § 87(2)(b) to the hospital.	C . Exonerated
D . POM Jaray Green	Force: Police Officer Jaray Green used a chokehold against § 87(2)(b) en route to § 87(2)(b).	D . Unfounded
E . POM Jaray Green	Force: Police Officer Jaray Green restricted § 87(2)(b)'s breathing en route to § 87(2)(b).	E . Unfounded

Summary of Complaint

On February 27th, 2018, § 87(2)(b) filed this complaint with the CCRB via phone. On February 26th, 2018, at approximately 4:23PM, Police Officer Christopher Whyms of the 90th Precinct threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority, unsubstantiated**) and threatened to remove her to the hospital (**Allegation B: Abuse of Authority, unsubstantiated**) in front of § 87(2)(b) in Brooklyn. Police Officer Jaray Green of the 90th Precinct forcibly removed § 87(2)(b) to the hospital (**Allegation C: Abuse of Authority, exonerated**). PO Green used a chokehold against § 87(2)(b) (**Allegation D: Force, unfounded**) and restricted her breathing (**Allegation E: Abuse of Authority, unfounded**) while en route to § 87(2)(b).

There is no material video evidence in this case.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Christopher Whyms threatened to arrest

§ 87(2)(b)

Allegation B—Abuse of Authority: Police Officer Christopher Whyms threatened to remove § 87(2)(b) to the hospital.

The following account of events is undisputed: On February 26th, 2018, at approximately 4:23PM, § 87(2)(b) was at home inside a shelter at § 87(2)(b) in Brooklyn when she was reportedly involved in a physical altercation with another resident. Several officers, all from the 90th Precinct, arrived on scene. Several officers remained outside the shelter with § 87(2)(b) while PO Whyms and PO Green went inside to determine what happened.

§ 87(2)(b) testified that she could not remember most of what happened while she waited outside the shelter, but alleged that at one point an officer told her that she had a choice between going to the precinct stationhouse or the hospital. (BR01).

EMT § 87(2)(b) provided the following testimony: EMT § 87(2)(b) waited outside the shelter with § 87(2)(b) while PO Whyms and PO Green conducted their investigation. (BR02). At the outset, § 87(2)(b) yelled at officers. As time passed, § 87(2)(b) became calm, but occasionally yelled and cursed. EMT § 87(2)(b) told § 87(2)(b) that if she remained clam, she would not necessarily need to go to the hospital. After some time passed, PO Whyms came out of the shelter and told § 87(2)(b) that because there were more than enough witnesses to establish that § 87(2)(b) assaulted the other shelter resident, she had the choice between being arrested for assault or going to the hospital for a psychological evaluation. § 87(2)(b) was calm at the time PO Whyms told her this. After PO Whyms presented the choice between stationhouse and hospital, § 87(2)(b) quickly alternated between appearing angry and calm and did not remain in a stable emotional state. Because of § 87(2)(b)'s unstable emotional condition, EMT § 87(2)(b) ultimately decided to remove § 87(2)(b) to the hospital.

PO Whyms provided the following testimony: § 87(2)(b) yelled when PO Whyms first encountered her. (BR03). PO Whyms' investigation initially bore out that § 87(2)(b) was guilty of assault in the third degree. After interviewing witnesses, PO Whyms went outside and told § 87(2)(b) that she was under arrest for assaulting the shelter resident. However, after PO Whyms told § 87(2)(b) this, another witness provided conflicting testimony, so PO Whyms determined § 87(2)(b) was no longer under arrest. At some point, shelter staff

informed PO Whyms that § 87(2)(b) was off her medication and needed to go to the hospital. At some point, EMTs arrived on scene and someone—PO Whyms did not know who—made the decision for § 87(2)(b) to be removed to the hospital. PO Whyms believed that at some point he probably told § 87(2)(b) that she had to go to the hospital to be evaluated, but he did not recall when.

PO Green and PO Yanez testified that no one ever gave § 87(2)(b) a choice between going to the stationhouse and going to the hospital. (BR04-05). PO Green and PO Yanez both denied that anyone threatened to arrest § 87(2)(b).

NYS Penal Law 120.00 stipulates that “A person is guilty of assault in the third degree when ... with intent to cause physical injury to another person, she causes such injury to such person.” (BR06).

§ 87(2)(g)

§ 87(2)(g). Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

NYPD Patrol Guide Procedure 221-13 outlines the following: “An emotionally disturbed person (EDP) is someone who appears to be mentally ill or temporarily deranged and is conducting herself in a manner which a police officer reasonably believes is likely to result in serious injury to herself or others. An EDP may be taken into protective custody when she is conducting herself in a manner likely to result in serious injury to herself or others.” (BR07).

§ 87(2)(g)

§ 87(2)(g). Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C—Abuse of Authority: Police Officer Jaray Green forcibly removed § 87(2)(b) to the hospital.

It is undisputed that PO Green forcibly removed § 87(2)(b) to the hospital.

EMT § 87(2)(b) testified that she made the decision to have § 87(2)(b) removed to the hospital because after PO Whyms told § 87(2)(b) that she had a choice between going to the precinct stationhouse and going to the hospital, § 87(2)(b) alternated between appearing angry and appearing calm very quickly rather than remaining in one state or the other. (BR02).

NYPD Patrol Guide Procedure 216-01 stipulates that police officers “shall cooperate with ambulance/hospital personnel in every reasonable manner.” (BR15).

§ 87(2)(g)

§ 87(2)(g). Therefore, it is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D—Force: Police Officer Jaray Green used a chokehold against § 87(2)(b) **en route to** § 87(2)(b):

Allegation E—Force: Police Officer Jaray Green restricted § 87(2)(b) **s breathing en route to** § 87(2)(b):

§ 87(2)(b) provided the following testimony: PO Green rode with § 87(2)(b) to § 87(2)(b). (BR01). After the ambulance began to move, PO Green put his thumb on the lower left front of § 87(2)(b)s throat and the rest of his fingers on the lower left back of § 87(2)(b)s neck. § 87(2)(b) had difficulty breathing as a result of this action. A few minutes after PO Green began to choke her, § 87(2)(b) asked PO Green why he was doing this. In response, PO Green stopped choking § 87(2)(b).

EMT § 87(2)(b) provided the following testimony: EMT § 87(2)(b) drove the ambulance to the hospital while her partner, EMT § 87(2)(b) rode in the back. (BR02). While she drove, EMT § 87(2)(b) had a clear line of vision to the back of the ambulance. § 87(2)(b) spoke a lot but remained generally calm throughout the ambulance ride. EMT § 87(2)(b) never saw PO Green make contact with § 87(2)(b)s throat area. § 87(2)(b) never complained of having trouble breathing, nor did EMT § 87(2)(b) ever observe that § 87(2)(b) was having trouble breathing.

EMT § 87(2)(b) testified she did not remember the incident. (BR08).

PO Green provided the following testimony: On the way to § 87(2)(b) § 87(2)(b) began to yell. (BR04). PO Green placed § 87(2)(b) in handcuffs. § 87(2)(b) pulled away from PO Green, so PO Green held on to § 87(2)(b)s arm and was able to successfully handcuff her. At one point, PO Green made contact with § 87(2)(b)s shoulder area, but PO Green denied making contact with § 87(2)(b)s neck area. PO Green never observed § 87(2)(b) having trouble breathing.

NYPD Patrol Guide Procedure 221-02 outlines the following: officers must “apply no more than the reasonable force necessary to gain control” in police incidents and “avoid actions which may result in ... reducing the subject’s ability to breathe.” (BR09).

§ 87(2)(g). Therefore, it is recommended that **Allegations D and E** be closed as **Unfounded**.

Mediation, Civil, and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) during her initial phone statement and during her in-person interview. (BR01). Both times § 87(2)(b) rejected mediation.
- The NYC Office of the Comptroller responded to a request on July 25th, 2018, indicating that no notice of claim was filed by § 87(2)(b) regarding this incident. (BR10).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second of three complaints involving § 87(2)(b) § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
- PO Whyms has been a MOS for 10 years, and this is the first CCRB complaint filed against him. (BR13).
- PO Green has been a MOS for 12 years, and this is the second CCRB complaint filed against him. (BR14). The previous complaint generated one allegation for Force-Physical Force. The CCRB did not substantiate this allegation and the NYPD has not imposed any discipline pursuant to this CCRB case.

Squad No.: 5

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date